

SENATE/HOUSE FILE _____
BY (PROPOSED DEPARTMENT OF
NATURAL RESOURCES BILL)

A BILL FOR

1 An Act relating to natural resources, including office
2 locations of the director of natural resources, state park
3 user fee pilot programs, the delegation of powers and duties
4 concerning state preserves, and age requirements for hunting
5 deer with pistols or revolvers.
6 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 455A.4, subsection 1, paragraph h, Code
2 2026, is amended to read as follows:

3 h. Maintain an office at or near the state capitol complex,
4 which ~~is~~ office shall be open at all reasonable times for the
5 conduct of public business.

6 Sec. 2. Section 456A.14, Code 2026, is amended to read as
7 follows:

8 **456A.14 Temporary appointments — peace officer status.**

9 The director may appoint temporary officers for a period
10 not to exceed six months and may adopt minimum physical,
11 educational, mental, and moral requirements for the temporary
12 officers. Chapter 80B does not apply to the temporary
13 officers. Temporary officers have all the powers of peace
14 officers in the enforcement of this chapter and chapters 321G,
15 321I, 456B, 461A, 461B, 462A, 462B, 465C, 481A, 481B, 482,
16 483A, 484A, and 484B, ~~sections 455A.14A and 455A.14B,~~ and the
17 trespass laws.

18 Sec. 3. Section 465C.8, unnumbered paragraph 1, Code 2026,
19 is amended to read as follows:

20 The ~~department~~ commission shall have the following powers
21 and duties with respect to this chapter:

22 Sec. 4. Section 465C.9, Code 2026, is amended to read as
23 follows:

24 **465C.9 Articles of dedication.**

25 1. The public agency or private owner shall complete
26 articles of dedication on forms approved by the ~~department~~
27 commission. When the articles of dedication have been approved
28 by the governor, the ~~department~~ commission shall record them
29 with the county recorder for the county or counties in which
30 the area is located.

31 2. The articles of dedication may contain restrictions
32 on development, sale, transfer, method of management,
33 public access, and commercial or other use, and may contain
34 such other provisions as may be necessary to further the
35 purposes of this chapter. ~~They~~ The articles may define

1 the respective jurisdictions of the owner or operating
2 agency and the ~~department~~ commission. ~~They~~ The articles may
3 provide procedures to be applied in case of violation of the
4 dedication. ~~They~~ The articles may recognize reversionary
5 rights. ~~They~~ The articles may vary in provisions from one
6 preserve to another in accordance with differences in relative
7 conditions.

8 Sec. 5. Section 465C.10, Code 2026, is amended to read as
9 follows:

10 **465C.10 When dedicated as a preserve.**

11 An area shall become a preserve when it has been approved
12 by the ~~department~~ commission for dedication as a preserve,
13 whether in public or private ownership, formally dedicated as a
14 preserve within the system by a public agency or private owner,
15 and designated by the governor as a preserve.

16 Sec. 6. Section 465C.11, Code 2026, is amended to read as
17 follows:

18 **465C.11 Area held in trust.**

19 1. An area designated as a preserve within the system is
20 hereby declared put to its highest, best, and most important
21 use for public benefit. It shall be held in trust and shall
22 not be alienated except to another public use upon a finding
23 by the ~~department~~ commission of imperative and unavoidable
24 public necessity and with the approval of ~~the commission~~, the
25 general assembly by concurrent resolution, and the governor.
26 The ~~department's~~ commission's interest or interests in any
27 area designated as a preserve shall not be taken under the
28 condemnation statutes of this state without such a finding of
29 imperative and unavoidable public necessity by the ~~department~~
30 commission, and with the consent of ~~the commission~~, the general
31 assembly by concurrent resolution, and the governor.

32 2. The ~~department~~ commission, with the approval of the
33 governor, may enter into amendments to any articles of
34 dedication upon its finding that such amendment will not
35 permit an impairment, disturbance, or development of the area

1 inconsistent with the purposes of this chapter.

2 3. Before the ~~department~~ commission shall make a finding
3 of imperative and unavoidable public necessity, or shall
4 enter into any amendment to articles of dedication, the
5 ~~department~~ commission shall provide notice of such proposal
6 and opportunity for any person to be heard. Such notice shall
7 be published at least once in a newspaper with a general
8 circulation in the county or counties wherein the area directly
9 affected is situated, and mailed within ten days of such
10 published notice to all persons who have requested notice of
11 all such proposed actions. Each notice shall set forth the
12 substance of the proposed action and describe, with or without
13 legal description, the area affected, and shall set forth a
14 place and time not less than sixty days thence for all persons
15 desiring to be heard to have reasonable opportunity to be heard
16 prior to the finding of the ~~department~~ commission.

17 Sec. 7. Section 481A.48, subsection 5, Code 2026, is amended
18 to read as follows:

19 5. The commission shall establish one or more pistol or
20 revolver seasons for hunting deer as separate firearm seasons
21 or to coincide with one or more other firearm deer hunting
22 seasons. Any pistol or revolver with a barrel length of at
23 least four inches and firing straight wall or other centerfire
24 ammunition propelling an expanding-type bullet with a maximum
25 diameter of no less than three hundred fifty thousandths of
26 one inch and no larger than five hundred thousandths of one
27 inch and with a published or calculated muzzle energy of five
28 hundred foot pounds or higher is legal for hunting deer during
29 the pistol or revolver seasons. The commission shall adopt
30 rules to allow black powder pistols or revolvers for hunting
31 deer. The rules may limit types of projectiles. A person who
32 is ~~twenty years of age or less~~ under the age of eighteen shall
33 not hunt deer with a pistol or revolver unless that person is
34 accompanied and under direct supervision throughout the hunt
35 by a responsible person with a valid hunting license ~~who is at~~

1 ~~least twenty-one years of age, with the consent of a parent,~~
2 ~~guardian, or spouse who is at least twenty-one years of age,~~
3 pursuant to section 724.22, subsection 4. ~~The responsible~~
4 ~~person with a valid hunting license who is at least twenty-one~~
5 ~~years of age shall be responsible for the conveyance of the~~
6 ~~pistol or revolver while the pistol or revolver is not actively~~
7 ~~being used for hunting.~~ A person possessing a prohibited
8 pistol or revolver while hunting deer commits a scheduled
9 violation under section 805.8B, subsection 3, paragraph "h",
10 subparagraph (5).

11 Sec. 8. Section 805.8C, subsection 14, Code 2026, is amended
12 by striking the subsection.

13 EXPLANATION

14 The inclusion of this explanation does not constitute agreement with
15 the explanation's substance by the members of the general assembly.

16 This bill relates to natural resources, including office
17 locations for the director of the department of natural
18 resources, state park user fee pilot programs, the delegation
19 of powers and duties concerning state preserves, and age
20 requirements for hunting deer with pistols or revolvers.

21 The bill removes references to the Lake Manawa and Waubonsie
22 state park user fee pilot programs that repealed by their own
23 terms on December 31, 2025.

24 Under current law, the director of the department of natural
25 resources (DNR) must maintain an office at the state capitol.
26 The bill allows the office to be at or near the state capitol.

27 Under current law, DNR has certain powers and duties
28 regarding state preserves. The bill transfers all these powers
29 and duties to the natural resource commission.

30 Under current law, a person who is 20 years of age or less
31 is not allowed to hunt deer with a pistol or revolver unless
32 accompanied by person who is at least 21 years of age with
33 a valid hunting license and with the consent of a parent,
34 guardian, or spouse who is at least 21 years of age. The bill
35 changes the age threshold from 20 years of age or less to under

S.F. _____ H.F. _____

1 the age of 18. The bill also makes corresponding changes to
2 supervision requirements by allowing a person who is 18 years
3 old or older with a valid hunting license and the required
4 consent to supervise a person under the age of 18 in hunting
5 deer with a pistol or revolver with certain limitations.